

This evidence statement summarizes comparator evidence showing that Respondent appears to have applied schedule movement, department movement, waitlist/ticket requirements, and workplace flexibility inconsistently.

I remained on the PM / closing schedule shift, ending at **10:00 PM**, despite repeated requests for schedule relief and despite raising concerns about my waitlist placement. At the same time, other leaders appear to have received earlier schedules, midshift schedules, department movement, assignment exceptions, and schedule flexibility.

This evidence is especially concerning because I was not a low performer. Based on my performance history, I was a consistently high-performing leader, frequently ranked at or near **number one in Consumer Banking** with strong employee survey results and a history of receiving a **4 rating**, which is a strong rating and generally the highest practical rating below a 5 / outstanding. The one time I received a lower “solid” rating occurred after I filed my EEOC complaint, which I believe was retaliatory and inconsistent with my performance history.

The comparator evidence raises a direct question:

If earlier schedules, midshift placement, department movement, and assignment flexibility were available to lower or medium performers and other non-Black leaders, why was I, a consistently high-performing Black leader, kept on the PM / closing schedule and treated as though movement was unavailable or restricted?

The issue is not simply that different leaders had different schedules. The issue is that Respondent appeared to treat movement and flexibility as available for some leaders, while treating those same options as unavailable, restricted, waitlist-dependent, ticket-dependent, or blocked for me.

This is important because Respondent may rely on neutral explanations such as business need, waitlist order, ticket requirements, department placement, staffing needs, or performance. The records summarized below raise concern that those explanations were not applied consistently.

II. My Relevant Background

- I started with Respondent on or about **April 3, 2023**.
- I remained in the same general area for an extended period.
- I remained on the PM / closing schedule ending at **10:00 PM**.
- I repeatedly requested a different schedule, including midshift and/or earlier shift options.
- I raised concerns that I was not properly added to the schedule waitlist and that the waitlist records were incomplete, inaccurate, or changed.
- Remaining on the PM / closing schedule affected my ability to manage family and childcare responsibilities.

- Remaining in the same area and shift limited my exposure to other departments, leaders, roles, development opportunities, and operational experience.
 - I was consistently a high performer, frequently ranked at or near the top of the department, with strong survey results.
 - I generally received a **4 rating**, considered a strong rating and generally the highest practical rating below a 5 / outstanding.
 - After filing my EEOC complaint, I received a lower “solid” rating, which I believe was retaliatory and inconsistent with my performance history.
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III. Schedule Data Reviewed

The schedule screenshots reviewed appear to cover the following months:

- **December 2024**
- **January 2025**
- **February 2025**
- **March 2025**
- **April 2025**
- **May 2025**
- **June 2025**
- **July 2025**
- **August 2025**
- **September 2025**
- **October 2025**
- **February 2026**
- **March 2026**
- **April 2026**
- **May 2026**

Across these records, multiple leadership schedules appear to be in use at the same time, including:

Schedule Type	Examples Shown in Records
Earlier AM schedule	7:45 AM–4:30 PM
Earlier AM schedule	8:00 AM–4:30 PM
Earlier AM schedule	8:30 AM–4:30 PM
Midshift schedule	10:00 AM–6:30 PM

Midshift schedule	10:30 AM–7:00 PM
Mid/late schedule	11:00 AM–7:30 PM
Mid/late schedule	11:30 AM–8:00 PM
PM / closing schedule	1:30 PM–10:00 PM

This matters because the records do not show that earlier or midshift schedules were unavailable. They show the opposite: earlier schedules, midshift schedules, department movement, and varied schedule arrangements existed throughout the relevant period.

IV. Core Comparator Evidence

A. Tyler Millisock — Strongest Schedule, Movement, Waitlist, and Merit Comparator

Key Facts

- Tyler Millisock and I started on or about the same date: **April 3, 2023**.
- Tyler is a white leader.
- Tyler and I both appear in PM-type scheduling at points.
- Tyler worked in multiple areas and appears to have received broader department movement.
- Tyler appears to have moved into earlier/midshift scheduling while I remained on the PM / closing schedule.
- Tyler stated he was **not on the waitlist** for the movement being compared.
- Based on my understanding, there was **no ticket** supporting Tyler's movement.
- Based on my understanding, Tyler was a lower-to-medium performer compared to my stronger performance history.
- I was a high performer, frequently ranked at or near number one in the department, with strong employee survey results and a history of strong ratings.

Why Tyler Is the Strongest Comparator

Tyler is the strongest comparator because he shares key similarities with me, but appears to have received more favorable movement and schedule treatment despite not having the same performance record.

Factor	Lashawonna Harbin	Tyler Millisock	Why It Matters
Start date	April 3, 2023	April 3, 2023	Same starting point for experience comparison.
Leadership role	TL / Unit Manager	TL / Unit Manager	Same general leadership level.
Race	Black / biracial Black	White	Relevant to disparate treatment analysis.
PM schedule history	Yes, remained on PM / closing	Yes, but later moved	Shows he had similar PM history but was not kept there.
Performance history	High performer; often number one or near number one; strong surveys; generally rated 4 / strong	Lower-to-medium performer based on my understanding	Undercuts any explanation that movement/flexibility was merit-based.
Department movement	Remained in same general area for extended period	Worked in multiple areas	Shows Tyler received broader exposure and opportunity.
Waitlist issue	My placement was disputed / challenged	Tyler stated he was not on the waitlist	Raises inconsistency in whether waitlist was actually required.
Ticket issue	I was subject to process barriers	No ticket identified based on my understanding	Raises inconsistency in whether tickets were required.
Result	Remained PM / closing	Moved into earlier/midshift schedule and different area	Shows unequal outcome under similar or less favorable merit circumstances.

Why This Is Significant

Tyler's treatment raises multiple inconsistencies at once:

1. **Waitlist inconsistency:** Tyler stated he was not on the waitlist, yet appears to have received movement.
2. **Ticket inconsistency:** No ticket has been identified for Tyler based on my understanding, yet he appears to have received movement.

- 3. **Performance inconsistency:** I was a stronger performer, yet Tyler appears to have received broader movement and earlier/midshift scheduling.
- 4. **Department movement inconsistency:** Tyler worked in different areas while I remained fixed in the same general area.
- 5. **Schedule flexibility inconsistency:** Tyler appears to have moved into earlier/midshift schedules while I remained on the PM / closing schedule.

If Respondent claims movement was based on business need, waitlist order, ticket requirements, staffing needs, or performance, Tyler’s treatment should be directly compared to mine.

The central Tyler question is:

What process allowed Tyler, a white leader who was not on the waitlist and had no ticket identified, to move areas and receive earlier/midshift scheduling while I, a higher-performing Black leader with long-standing schedule requests, remained locked into PM?

B. Tyler Month-by-Month Schedule and Movement Pattern

Month	Tyler / Comparator Schedule Pattern Shown	My Schedule Pattern Shown	Significance
December 2024	Multiple leaders appear on earlier schedules such as 8:00 AM–4:30 PM, 8:30 AM–4:30 PM, 10:00 AM–6:30 PM, and 11:30 AM–8:00 PM. Marc Case appears on PM-type 1:30 PM–10:00 PM.	I appear on 1:30 PM–10:00 PM.	Earlier and midshift schedules existed before the 2025 movement period while I remained PM/closing.
January 2025	Tyler appears on a PM-type schedule, including 1:30 PM–10:00 PM entries. Marc Case also appears on 1:30 PM–10:00 PM.	I appear on 1:30 PM–10:00 PM.	Establishes that Tyler, Marc, and I were all shown in PM-type scheduling.

February 2025	Tyler appears on an earlier schedule around 11:30 AM–8:00 PM / 11:00 AM–8:00 PM. Pay Pro also shows Nicole Rinard around 7:45 AM–4:30 PM and Shontelle Buhler around 8:00 AM–4:30 PM. PRE-D / DBC shows several schedule types, including 8:00 AM–4:30 PM, 8:30 AM–4:30 PM, 11:30 AM–8:00 PM, 11:00 AM–7:30 PM, and 1:30 PM–10:00 PM.	I remain on 1:30 PM–10:00 PM.	Shows Tyler moved earlier while multiple other earlier schedule options existed.
March 2025	Tyler appears on 11:30 AM–8:00 PM. Pay Pro and PRE-D / DBC continue showing earlier and midshift schedules.	I remain on 1:30 PM–10:00 PM.	Continued evidence that earlier schedules were available while I remained PM.
April 2025	Tyler appears on 11:30 AM–8:00 PM.	I remain on 1:30 PM–10:00 PM.	Continued earlier schedule for Tyler.
May 2025	Tyler appears on 11:30 AM–8:00 PM and also appears with OH/on-site entries in the LVAR schedule.	I remain on 1:30 PM–10:00 PM.	Shows continued earlier schedule and different assignment/schedule handling.
June 2025	PRE-D / DBC screenshots show multiple schedules, including 8:00 AM–4:30 PM, 11:30 AM–8:00 PM, 11:00 AM–7:30 PM, and 1:30 PM–10:00 PM.	I remain tied to PM / closing schedule concerns.	Shows multiple schedule options existed immediately before July movement.
July 2025	Tyler appears in PRE-D / DBC with 11:30 AM–8:00 PM EST.	I remain tied to PM / closing schedule concerns.	Tyler's earlier schedule continued after department movement.
September 2025	Tyler appears on 11:30 AM–8:00 PM EST.	I remain tied to PM / closing schedule concerns.	Continued earlier schedule.

October 2025	Tyler appears on 11:30 AM–8:00 PM EST.	I remain tied to PM / closing schedule concerns.	Continued earlier schedule.
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C. March 2025 Movement Planning — Tyler as MID TL / Earlier-Shift Placement

The March 2025 movement-planning screenshots appear to reference Tyler in a midshift or earlier-shift planning context, including language indicating that Tyler would be added as a MID TL or placed into an earlier schedule category.

This is important because it suggests Tyler’s movement was not purely automatic or waitlist-driven. It appears to have been part of leadership planning and operational decision-making.

If leadership had discretion to place Tyler into a midshift / earlier-shift role based on business need, then the same discretion should be examined as to me, especially given:

- my long-standing schedule request,
 - the family/childcare impact of the PM schedule,
 - my disputed waitlist placement,
 - my stronger performance history,
 - my strong employee survey results,
 - and my protected complaints.
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D. Hunter — AM Shift / Waitlist Comparator

Key Facts

- Hunter started the same day as me.
- Hunter came from a PM or similar shift.
- Based on my understanding, Hunter was on the waitlist when I had been taken off or when my waitlist placement was disputed.
- Hunter was moved into an AM shift that I would have accepted.
- Hunter came from another department outside of our director’s area.

Why Hunter Is Significant

Hunter's movement is significant because it suggests that AM or earlier-shift openings were available, including to employees outside my immediate director's area, while I remained on PM and my waitlist placement was disputed.

When I asked Allan why I had not been moved and raised Hunter as an example, he denied knowing about Hunter's earlier shift movement. This is significant because Allan was involved in management decision-making and/or had influence over movement decisions, yet denied awareness of movement that appears directly relevant to my schedule concerns.

Hunter's movement supports the concern that earlier-shift opportunities were available, but I was not moved into them despite my prior requests and waitlist concerns.

E. Marc Case — Same PM Shift / Early Leave Flexibility Comparator

Key Facts

- Marc Case is a white Unit Manager / Team Leader.
- Marc was on the same PM shift as me.
- Marc was allowed to leave approximately one hour early.
- When Marc left early, I was required to watch his team and take on additional coverage responsibility while still managing my own team.

Why Marc Is Significant

Marc is a strong flexibility comparator because he was on the same PM schedule. This is not a broad or abstract schedule comparison. It is direct: Marc was on the same PM shift, received flexibility, and the burden of that flexibility was shifted to me.

This supports unequal treatment because Marc received schedule flexibility while I:

- remained on the full PM / closing shift,
 - did not receive comparable relief,
 - and absorbed additional work created by his flexibility.
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F. Julie Cahoon — Assignment Flexibility Comparator

Key Facts

- Julie Cahoon is a white Unit Manager / Team Leader.
- Based on my understanding, Julie was a lower performer compared to my performance history.
- I was told that unit managers could not request coaches.
- I was told Todd needed to remain with the leader he had worked with.
- However, Karena Lesure later stated that Julie specifically requested her and that a concession was made for Julie.

Why Julie Is Significant

Julie should be treated primarily as an assignment-flexibility comparator rather than the strongest schedule comparator. The current schedule screenshots show Julie mostly in PM-type scheduling, with PTO/OIL/holiday entries and some schedule variation. I am not overstating Julie as someone who permanently moved off PM based on the schedule alone.

The stronger Julie issue is assignment flexibility. I was told a rule existed: unit managers could not request coaches and people needed to stay where they were. But Julie allegedly received the exact type of exception I was told was unavailable.

This supports the concern that assignment and movement rules were applied differently to me and Todd, both Black employees, than they were applied to Julie, a white leader.

It also raises a performance/merit question: if flexibility was based on leadership judgment, business value, or performance, why was a lower-performing white leader granted an assignment concession while I, a high-performing Black leader, was denied comparable flexibility?

G. Marissa Mascarenas — Earlier / Midshift Schedule Flexibility Example

The schedule screenshots appear to show Marissa Mascarenas with earlier or midshift schedules, including schedules such as **8:00 AM–4:30 PM** and **10:00 AM–6:30 PM**.

Month	Marissa Schedule Pattern Shown	Significance
December 2024	Earlier/midshift scheduling, including 8:00 AM–4:30 PM and/or 10:00 AM–6:30 PM patterns.	Shows earlier/midshift schedules existed before the 2025 movement period.
January 2025	Earlier schedule entries such as 8:00 AM–4:30 PM / 10:00 AM–6:30 PM.	Shows earlier or midshift scheduling was available.

February 2025	8:00 AM–4:30 PM and 10:00 AM–6:30 PM type entries.	Shows continued midshift/earlier schedule flexibility.
March 2025	Earlier/midshift scheduling.	Continued earlier/midshift flexibility.
April 2025	10:00 AM–6:30 PM type scheduling.	Continued midshift-type schedule.
May 2025	Earlier/midshift scheduling patterns.	Continued earlier/midshift schedule availability.
June 2025	Other groups show multiple earlier/midshift schedules, including 8:00 AM–4:30 PM and 11:30 AM–8:00 PM.	Shows the schedule structure continued to include earlier and midshift options.

Marissa may be relevant as a schedule-flexibility comparator if she was similarly situated and received earlier or midshift placement while I remained on PM.

V. Department Movement / Disappearing From Schedule Evidence

The schedule records should also be reviewed for department movement, not just shift times. In the screenshots, some leaders appear in one area, later appear in a different area, or disappear from one schedule group and reappear elsewhere. This matters because department movement itself can provide access to:

- earlier schedules,
- different leaders,
- better assignments,
- broader operational experience,
- increased visibility,
- and development opportunities.

I remained in the same general area and PM / closing schedule for an extended period while other leaders appear to have moved across areas or been placed in different business lines.

Apparent Movement / Placement Patterns

Leader	Apparent Placement Before	Apparent Placement After	Approximate Timing Shown	Why It Matters
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Tyler Millisocks	Appears in TBAY / Whitehall-type schedule views and PM-type scheduling in January 2025.	Appears later in PRE-D / DBC with an earlier/midshift schedule around 11:30 AM–8:00 PM.	January 2025 through July/September/October 2025.	Strongest movement example. Tyler appears to move into a different area and earlier schedule while I remained on PM. He stated he was not on the waitlist, and no ticket has been identified based on my understanding.
Marissa Mascareñas	Appears in LVAR-type schedule views with earlier/midshift entries such as 8:00 AM–4:30 PM and 10:00 AM–6:30 PM.	Appears to remain in or be reflected across varied scheduling patterns while continuing to receive earlier/midshift scheduling.	December 2024 through June 2025.	Shows access to schedule variation and earlier/midshift options while I remained PM.
Julie Cahoon	Appears in LVAR-type schedule views, often PM-type 1:30 PM–10:00 PM, with some schedule variation.	Later remains visible in PM-type scheduling; separately appears to have received assignment flexibility through the Karena coach-request concession.	December 2024 through September 2025, plus April/May 2026 assignment issue.	Julie is not the strongest schedule-movement comparator, but she remains relevant for assignment flexibility and exceptions.

Brittnee Walker	Appears in LVAR-type schedule views in early 2025.	Later appears in schedule views with onsite / Ohio TL references and/or different positioning.	Early 2025 through May 2025.	May show movement or different assignment placement. Needs confirmation from source roster records.
Dylan Bryant	Appears in Whitehall TL schedule views with earlier schedules such as 8:00 AM–4:30 PM and 9:30 AM–6:00 PM.	Appears across multiple months and later schedule structures.	December 2024 through September/October 2025.	Shows continued access to earlier schedules and possible movement/placement outside my PM pattern.
Josh Faulkner	Appears in TBAY / Whitehall / training-related schedule views.	Later appears as TL in Training / TBAY and/or different schedule groupings.	December 2024 through September 2025.	May show different functional placement or training assignment. He may not be the strongest comparator due to different training/on-site role, but his movement/placement helps show the broader system was flexible.
Kandace Adkins	Appears in Whitehall TL schedule views with 8:00 AM–4:30 PM patterns.	Appears across later Whitehall/TBAY views and earlier schedule structures.	December 2024 through March/April 2025.	Shows earlier schedule access and ongoing placement outside my PM schedule.

Leslie McGregor	Appears in Whitehall TL schedule views with 8:00 AM–4:30 PM and later 11:30 AM–8:00 PM type entries.	Appears later as TL in Training / TBAY.	December 2024 through September 2025.	Suggests movement or placement change into training/TBAY while continuing to show schedule variation.
Elisa MataAbarca	Appears in PRE-D / DBC with 11:30 AM–8:00 PM.	Continues in PRE-D / DBC with similar schedule patterns.	February through July 2025.	Shows that other departments had different schedule structures available.
Marla Boyd	Appears in PRE-D / DBC with 8:00 AM–4:30 PM / 8:30 AM–4:30 PM.	Continues in PRE-D / DBC with earlier schedule patterns.	February through July 2025.	Shows earlier schedules existed in other departments while I remained PM.
Kari Ross / Jerry Clark	Appear in PRE-D / DBC with earlier schedules such as 8:00 AM–4:30 PM / 8:30 AM–4:30 PM.	Continue in PRE-D / DBC with earlier schedules.	February through July 2025.	Shows consistent earlier schedule availability in another area.
Nicole Rinard / Shontelle Buhler	Appear in Pay Pro with earlier schedules such as 7:45 AM–4:30 PM and 8:00 AM–4:30 PM.	Continue in Pay Pro in February/March 2025.	February and March 2025.	Shows other areas had earlier schedule structures available during the same period.

Why Movement Evidence Matters

The movement pattern is important because it suggests that Respondent had operational flexibility to move leaders, place leaders in different departments, and use different schedule structures.

If other leaders were able to move between areas or disappear from one schedule group and reappear in another, then Respondent should explain why I remained fixed in the same area and PM / closing schedule despite repeated requests, strong performance, and waitlist concerns.

This evidence strengthens the unequal-treatment argument because the issue becomes broader than schedule start/end time. It becomes:

Who was allowed to move, who was kept in place, what process was used, and whether that process was applied consistently.

VI. Broader Schedule Availability Evidence

The February and March 2025 screenshots show other leaders in Pay Pro and PRE-D / DBC working earlier schedules while I remained on PM. These employees may not all be direct comparators, but they are important because they show earlier schedules were operationally available across the broader leadership structure.

Area	Leader(s) Shown	Schedule Pattern Shown	Months Shown
Pay Pro	Nicole Rinard	Approximately 7:45 AM–4:30 PM	February and March 2025
Pay Pro	Shontelle Buhler	Approximately 8:00 AM–4:30 PM	February and March 2025
PRE-D / DBC	Elisa MataAbarca	Approximately 11:30 AM–8:00 PM	February, March, May, June, July 2025
PRE-D / DBC	Marla Boyd	Approximately 8:00 AM–4:30 PM / 8:30 AM–4:30 PM	February, March, May, June, July 2025
PRE-D / DBC	Kari Ross / Jerry Clark	Approximately 8:00 AM–4:30 PM / 8:30 AM–4:30 PM	February, March, May, June, July 2025
PRE-D / DBC	Veronica Lopez / Will Sandoval	11:00–7:30 or 11:30–8 type schedules	February, March, May, June, July 2025
PRE-D / DBC	Nameer Khan / Reggie Rogers	1:30 PM–10:00 PM	February, March, May, June, July 2025

This evidence matters because Respondent cannot credibly frame the PM / closing schedule as the only available leadership schedule during this period. The records show many schedule options were being used. The issue is why I was not given comparable movement or relief when others received earlier schedules, midshift placement, department movement, or flexibility.

VII. 2026 Continuation Evidence

The 2026 screenshots appear to show that schedule differences and flexibility continued into the next year. These records are useful because they show how leaders were scheduled after the earlier 2025 waitlist/movement concerns.

Month	Schedule Pattern Shown	Significance
February 2026	Several leaders appear with earlier schedules such as 8:00 AM–4:30 PM, 8:30 AM–4:30 PM, 10:30 AM–7:00 PM, 1:30 PM–10:00 PM, and 1:00 PM–10:00 PM. Tyler appears with a later/mid schedule around 10:30 AM–7:00 PM. Reggie appears around 1:30 PM–10:00 PM.	Shows multiple schedule options existed in the same general scheduling structure.
March 2026	Multiple leaders appear with earlier schedules, including 8:00 AM–4:30 PM, 8:30 AM–4:30 PM, 9:00 AM–5:30 PM, and 10:30 AM–7:00 PM.	Shows ongoing variety in leader schedules and continued use of earlier/midshift options.
April 2026	Leaders across LVAR UM and PRE-D/DBC appear with schedules such as 8:00 AM–4:30 PM, 8:30 AM–4:30 PM, 9:30 AM–5:30 PM, 10:30 AM–7:00 PM, 11:30 AM–8:00 PM, and 1:30 PM–10:00 PM.	Relevant to the April 2026 return-from-leave and movement period because it shows the availability of multiple schedule types.
May 2026	Continued mixed schedules among leaders, including earlier schedules, mid schedules, and PM/closing schedules.	Supports that schedule flexibility and varying schedules remained available during the same broader period as the April 2026 return-from-leave evidence.

The 2026 screenshots show that earlier and midshift schedules were not isolated or historical. They continued to exist across the leadership schedule structure.

VIII. Comparator Chart

Comparator	Race / Status	Relevant Similarity	Favorable Treatment / Flexibility	Timing Shown
Tyler Millisock	White	Same start date; TL / Unit Manager; worked PMs; lower-to-medium performer based on my understanding	Worked different areas; moved into earlier/midshift schedule; stated he was not on waitlist; no ticket identified based on my understanding	Jan 2025 PM-type schedule; Feb/Mar/Apr/May 2025 11:30–8; July/Sept/Oct 2025 continued 11:30–8
Hunter	Race/status to confirm	Same start date; came from PM/same shift; moved from another department	Moved into AM shift I would have accepted while my waitlist status was disputed	Timing connected to waitlist period and Allan transcript; exact month to confirm from records
Marc Case	White	Same PM shift as me	Allowed to leave early; I had to cover his team	Month/date to confirm from schedule/coverage records
Julie Cahoon	White	Unit Manager / TL; lower performer based on my understanding	Allegedly requested Karena and received a concession after I was told unit managers could not request coaches	April/May 2026 coach assignment comparator period
Marissa Mascareñas	Race/status to confirm	TL / Unit Manager; schedule records show earlier shifts	Appears to have 8:00–4:30 and/or 10:00–6:30 schedules	Dec 2024–June 2025 screenshots show earlier/midshift scheduling patterns

IX. Investigative Questions Raised by the Evidence

The evidence raises the following questions for Respondent:

1. **Waitlist consistency:** Why was my waitlist placement disputed, incomplete, or treated as a barrier while Tyler stated he was not on the waitlist and still received movement?

2. **Ticket consistency:** If a ticket was required for schedule movement, where is Tyler's ticket? If no ticket was required for Tyler, why was I held to a more restrictive process?
 3. **Performance / merit consistency:** If movement and flexibility were based on performance, readiness, business value, or leadership fit, why did a lower-to-medium performer like Tyler receive movement and earlier scheduling while I, a high-performing leader, remained fixed on PM?
 4. **Business-need discretion:** If leadership could move Tyler because an area needed a midshift leader, why could leadership not use similar discretion to address my long-standing PM schedule issue?
 5. **Department movement:** Why did Tyler and others receive broader department movement and exposure while I remained in the same area and shift?
 6. **Assignment exceptions:** Why was I told unit managers could not request coaches, while Julie allegedly received a requested coach concession?
 7. **Same-shift flexibility:** Why was Marc allowed to leave early while I remained on the full PM shift and covered his team?
 8. **Availability of schedules:** Why was I kept on PM when the records show multiple earlier and midshift schedules existed across the leadership structure?
 9. **Disappearing / moving between schedules:** Which leaders moved between areas, disappeared from one schedule group, or reappeared in another group, and what process authorized those moves?
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X. Conclusion

The records do not show that earlier schedules, midshift schedules, or department movement were unavailable. They show the opposite: earlier schedules, midshift schedules, department movement, assignment exceptions, and flexibility existed throughout the relevant period.

The strongest comparator is Tyler Millisock. Tyler started the same day as me, worked PMs, and appears to have moved into earlier/midshift scheduling and different departments while I remained on the PM / closing schedule. Tyler also stated that he was not on the waitlist, and based on my understanding, no ticket has been identified for his movement. This is especially significant because I was a consistently high-performing leader while Tyler was a lower-to-medium performer based on my understanding.

Hunter is relevant because she reportedly moved from PM or a similar shift into an AM shift I would have accepted while my waitlist status was disputed. Marc Case is relevant because he was on the same PM shift as me but received early-leave flexibility that required me to cover his team. Julie Cahoon is relevant because she allegedly received a coach-assignment concession that I was told was unavailable. Marissa Mascarenas is relevant because the records show earlier or midshift scheduling.

This evidence supports a serious question about unequal treatment:

Why were schedule movement, department movement, assignment exceptions, and flexibility available for others, including lower or medium performers, but not meaningfully available to me as a high-performing Black leader after protected complaints?